

1 Daniel "Sparky" Abraham, SBN 299193
2 JUBILEE LEGAL
3 300 E. Esplanade Dr. Suite 900
4 Oxnard, CA 93036
5 Phone: (805) 946-0386
6 Fax: (805) 620-7834
7 Sparky@Jubilee.Legal

8 Attorney for Defendant
9 DALTON C. GAUDIN

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10 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
11 NORTH VALLEY DISTRICT

12 STUDENT LOAN SOLUTIONS) Case No. 24CHLC00778
13 LLC,)
14) **REPLY IN SUPPORT OF THE**
15 Plaintiff,) **DEMURRER OF DALTON C GAUDIN**
16) **TO THE COMPLAINT OF STUDENT**
17 vs.) **LOAN SOLUTIONS LLC**
18)
19 DALTON C GAUDIN aka DALTON) *(Filed concurrently with Objection to*
20 CALEB GAUDIN and DOES 1) *Plaintiff's Request for Judicial Notice)*
21 through 30, Inclusive,)
22 Defendants) Date: July 9, 2024
23) Time: 8:30 am
24) Dept: F41
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1 **INTRODUCTION¹**

2 The Complaint demonstrates that this is an action on a contract from 2007
3 (Complaint, ¶ 33), that the contract required monthly payments (Complaint, ¶ 10, Exhibit
4 1), and that no monthly payments have been made since 2012 (Complaint, ¶ 11). On its
5 face, this action is barred by the four-year statute of limitations in California Code of Civil
6 Procedure § 337.

7 Plaintiff argues that the normal operation of the statute of limitations in this case is
8 altered by a “whole loan due” clause contained deep in the fine print of the contract at
9 issue. (*See generally* Plaintiff Student Loan Solutions, LLC Opposition to (sic) Defendant’s
10 Demurrer to Plaintiff’s Complaint (“Opposition”).) By operation of this clause, Plaintiff
11 claims that its cause of action is not governed by the breach of the overall contract, but
12 rather as to breach of each individual payment, and by whenever it chooses to “accelerate”
13 future payments. (Opposition, 6-10.) On Plaintiff’s theory, it may at any time “accelerate”
14 future payments, and thereafter sue for those future payments, plus the previous four years
15 of past payments, even decades after the last activity on the account. (*Id.*)

16 As explained in Defendant’s Demurrer and below, this theory fails. It represents a
17 stark departure from the normal operation of contract law and defeats the public policy
18 goals undergirding the statute of limitations.

19 But, in this case, Plaintiff has an additional problem: even if its overall theory held
20 water (it does not), Plaintiff accelerated future payments *more than four years* before filing
21 this action. It stated this fact in a prior pleading: “Plaintiff alleges that . . . on or about
22 **August 10, 2018**, hereinafter referred to as the ‘Acceleration Date’, Defendants became
23

24 ¹ Throughout its Opposition, Plaintiff uses incorrect names for Defendant, incorrect
25 pronouns for Defendant, incorrect dates, and incorrect dollar amounts. (*See, e.g.*,
26 Opposition, p. 4 (referring to “Defendants Kira A. Sitton”); p. 12 (using “her” to refer to
27 Defendant); p. 7 fn. 1 (quoting facts from Complaint that do not appear in Complaint).) It
appears Plaintiff has copied and pasted from a filing in a different case. Defendant herein
assumes these are unintentional errors.

indebted on the Account at the accelerated sum of \$11,292.68. Student Loan Solutions, LLC, as Holder, accelerated the Note for \$11,292.68.” (Defendant’s Request for Judicial Notice, Ex. A, pp. 2-3, ¶ 12.) “An admission in a pleading is conclusive on the pleader.” (*Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, 1271, *as modified* (Dec. 3, 2002).) Hence, on its own theory and by its own admission, Plaintiff’s claim in this case is time-barred.

The questions presented in Defendant's Demurrer are questions of law appropriate for Demurrer. This includes the question of waiver, which, although it is ordinarily a question of fact, may be determined as a matter of law where no material facts are in dispute. (*DuBeck v. California Physicians' Service* (2015) 234 Cal.App.4th 1254, 1265, quoting *Gill v. Rich* (2005) 128 Cal.App.4th 1254, 1264.) Here, no facts are in dispute: the Complaint for breach of contract alleges a breach in 2012, a previous pleading alleged acceleration in 2018, and this case was filed in 2024. The sole claim in the Complaint is untimely, and cannot be cured with amendment. Defendant respectfully requests that this Court sustain his Demurrer.

I. Plaintiff Admitted the Contract Was Accelerated in 2018.

Plaintiff's statement of fact in its previous pleading is clear: Plaintiff accelerated all future payments in August, 2018. "[O]n or about August 10, 2018, hereinafter referred to as the 'Acceleration Date', Defendants became indebted on the Account at the accelerated sum of \$11,292.68." (Defendant's Request for Judicial Notice, Ex. A, pp. 2-3, ¶ 12.) This statement was made in a pleading filed with this Court in a previous case, and is thus subject to judicial notice pursuant to Judicial Notice under Evidence Code § 452.

This admission of fact in a pleading is conclusive and binding. (*Valerio v. Andrew Youngquist Construction, supra*, 103 Cal.App.4th at 1271; *see also Betts v. City National Bank* (2007) 156 Cal.App.4th 222, 235 (“Under the doctrine of ‘conclusiveness of pleadings,’ a pleader is bound by well pleaded material allegations”); *Elec. Equip. Express v. Donald H. Seiler & Co.* (1981) 122 Cal.App.3d 834, 850 (“the pleader cannot dispute

1 the allegation that he made”); *Burt v. Burt* (1960) 187 Cal.App.2d 36, 41 (“It is the general
2 rule that a pleader is bound by the allegations contained in his complaint.”); *Peyton v. Cly*
3 (1960) 184 Ca.App.2d 193, 196 (“It is elemental that a party is bound by the admission of
4 his own pleadings”).)

5 In its Opposition, Plaintiff appears to argue that even though it plainly stated that it
6 accelerated the account in August, 2018, it actually accelerated the account in April, 2022.
7 (Opposition, 17.) This assertion directly contradicts the language in Plaintiff’s previous
8 pleading, which states that the full balance of all future payments became due “on or about
9 August 10, 2018.”

10 This Court should not allow Plaintiff to play fast and loose with its own pleaded
11 facts. Plaintiff alleged that the debt at issue in this case was accelerated in August, 2018.
12 Plaintiff’s time to file a claim for breach of contract, *even on its own theory of separate*
13 *breaches as to each payment until acceleration*, therefore expired in February, 2023
14 (including the tolling for Emergency Rule 9). This action was filed in January, 2024. It is
15 time-barred on Plaintiff’s own theory and by Plaintiff’s own admissions.

16 **II. Whether the Contract is for Installments is Irrelevant; the Question is**
17 **Whether the Payments are Divisible.**

18 Plaintiff argues extensively that the contract at issue is an “installment” contract,
19 and that this means the statute of limitations runs separately as to each payment. (*See*
20 *Opposition*, 6-10.) This misses the point: the question is not whether the contract is an
21 “installment contract” but whether the payments are divisible.

22 “When a contract is *divisible* and, thus, breaches of its severable parts give rise to
23 separate causes of action, the statute of limitations will generally begin to run at the time of
24 each breach” (*Armstrong Petroleum Corp. v. Tri-Valley Oil & Gas Co.* (2004) 116
25 Cal.App.4th 1375, 1388, citation omitted, emphasis added.) Divisible contracts are “to be
26 distinguished from the breach of an *entire* contract, though performance of that contract
27 may involve the rendering of benefits to the plaintiff before the date for final

1 performance.” (*Id.* at 1389.) “To determine whether breach of an agreement to repay a debt
2 gives rise to one or multiple limitations periods, a court must first examine whether the
3 contract requires periodic payments. **If it does, the court must then determine whether**
4 **or not the duty to make a monthly payment is divisible from the duty to pay the full**
5 **amount of the debt.”** (*Spears v. Spears* (2023) 97 Cal.App.5th 1294, 1305, citations
6 omitted, emphasis added.)

7 Mere payment of a single sum in monthly payments without more does not make a
8 contract divisible: “[The] general rule [is] that a contract which calls for the payment of a
9 specified sum for performance by the other party is not ‘severable’ merely because
10 payments are divided into installments.” (*Jozovich v. Central Cal. Berry Growers Ass’n*
11 (1960) 183 Cal.App.2d 216, 224.)

12 **III. Plaintiff’s Cited Authority Demonstrates that the Agreement at Issue is**
13 **Not Divisible.**

14 Plaintiff relies on *Conway v. Bughouse, Inc.*, (1980) 105 Cal.App.3d 194, to argue
15 that the agreement at issue in this case is divisible. (Opposition at 7, 10.) In *Conway*, the
16 agreement at issue involved the payor making monthly payments to the payee for the rest
17 of the payee’s life, and refraining from competing with the payee’s business. ((1980) 105
18 Cal.App.3d 194, 196.) The court analyzed whether the agreement was an entire agreement,
19 or whether the monthly payments were divisible. The court held that, in contrast with a
20 contract for a fixed sum to be paid over a period of time, which would not be divisible, the
21 contract at issue in *Conway* was divisible because it required payment of an
22 unascertainable amount due to its link to the payee’s lifetime, and included added
23 conditions. *Id.* at 199. Thus, the court held, because “each payment . . . is not a part of a
24 total payment,” the statute of limitations ran to each payment. *Id.* at 199-200.

25 Unlike in *Conway*, this case *does* concern a contract for a fixed sum, to be paid
26 over a period of time, with an ascertainable amount due, and where each payment is part of
27 a total payment. The Complaint says so directly: “Defendants executed and delivered . . . a
28

1 [loan agreement] *promising to pay a sum certain*” (Complaint, ¶ 5, emphasis added)
2 Per the reasoning in *Conway*, the statute of limitations here runs as to the entire contract,
3 not as to each payment.

4 The same goes for *Spears v. Spears* (2023) 97 Cal.App.5th 1294, which Plaintiff
5 quotes at length. *Spears* involved a dispute between family members as to oral loan
6 agreements, and whether those should be included in the debts of a decedent’s trust. (*Id.* at
7 1297.) The court held that because the purported creditor had alleged an acceleration
8 clause linked to the counterparty’s death, and because the creditor had *not* alleged other
9 essential details to determine the application of the statute of limitations, such as the
10 number or amount of payments, the court could not determine at demurrer whether the
11 claim was time-barred. (*Id.* at 1305.)

12 Unlike in *Spears*, Plaintiff has alleged all of the essential details to determine that
13 the payments at issue in this case are simply components of a single overall obligation.
14 Plaintiff has alleged that Defendant agreed to pay a single “sum certain” plus interest over
15 a definite period of time. Each payment as applied would reduce the total owed. There is
16 no uncertainty such as a lifetime obligation as was the case in both *Conway* and *Spears*. It
17 is therefore clear from the allegations and attachments in the Complaint that each payment
18 is not severable, and that this action is time-barred.²

22 ² Other problems with Plaintiff’s cited authority merit mention but not extended argument:
23 *Savoy v. National Collegiate Student Loan Trust 2005-3* (Tex. App. 2018) 557 S.W.3d 825
24 is a Texas case decided under Texas law and concerned the sufficiency of an acceleration
25 notice, not the validity of the acceleration clause. California regulations under the Student
26 Loan Servicing Act do not address divisibility of payments, and the definition of
27 “installment contract” quoted in Plaintiff’s Opposition does not cover the loan at issue in
28 this case because the loan is not “from a postsecondary institution.” See Cal. Code Regs.,
tit. 10, § 2032(a)(15). The informational webpost from the Consumer Financial Protection
Bureau attached to the Opposition as Exhibit 1 is neither relevant nor proper outside a
request for judicial notice.

1 **IV. Cases with Secured Loans Must Be Distinguished**

2 Plaintiff relies on *Piedmont Capital Management, LLC v. McElfish*, (2023) 94
3 Cal.App.5th 961, to argue that the mere presence of an optional acceleration clause in a
4 contract makes the payments under that contract divisible. (Opposition, 14-15.) This
5 surface interpretation, however, would put *Piedmont* at odds with cases such as *Spears*,
6 *Armstrong*, and *Jozovich*, which make clear that merely stating that payments are divisible,
7 or that obligations may be accelerated, is not sufficient. Rather, there must be some
8 continuing bilateral obligation between the parties.

9 This apparent conflict can be resolved with reference to the underlying facts of
10 *McElfish*, which, as Plaintiff notes, involved a Home Equity Line of Credit, *i.e.* a loan
11 secured by real property. As explained in Defendant's Demurrer, the analysis of
12 divisibility necessarily looks different with a secured loan because the parties have an
13 ongoing *bilateral* relationship by virtue of that security. Here, the ongoing obligation as
14 alleged was unilateral—Defendant's alleged obligation was to pay back a certain amount
15 borrowed plus interest without any ongoing obligation from Plaintiff or its predecessor.
16 Whereas in the context of secured lending, an optional acceleration clause in the contract
17 may be sufficient to demonstrate that the payment obligations are divisible, the same
18 conclusion for an unsecured loan would vitiate the analysis in the caselaw cited herein.

19 **V. Plaintiff's Arguments Concerning Laches are Misplaced.**

20 In the Demurrer, Defendant argues that Plaintiff has waived its right to accelerate
21 as a matter of law through unreasonable delay. (*See* Memorandum of Points and
22 Authorities in Support of Demurrer, pp. 13-14.) In Opposition, Plaintiff argues at length
23 concerning laches (Opposition, pp. 11-12), which is an affirmative defense. Defendant did
24 not raise the issue of laches in his Demurrer, nor could he, as it is an affirmative defense.

25 What Defendant did raise, and what Plaintiff fails to adequately address, is waiver.
26 An acceleration clause in a note must be exercised within a reasonable time, or it is
27 waived. (*Fletcher v. Dennison* (1894) 101 Cal. 292, 294.) Even if the payments

contemplated under the contract at issue are divisible, Plaintiff has waived its right to accelerate those payments as a matter of law through unreasonable delay. (*See Holland v. Paddock* (1956) 142 Cal.App.2d 534, 538 (holding that creditor’s failure to exercise acceleration clause until eleven months after default constituted unreasonable delay and waived the right to accelerate payments); *see also Curry v. U.S., Small Business Admin.* (N.D. Cal. 1987) 679 F.Supp. 966, 970 (right of action on promissory note with acceleration clause “accrue[s] at least by the date on which a reasonable person would have declared the note in default and due in full,” which in that case was 90 days).)

Whereas these cases held that a delay of more than eleven months on the one hand, and 90 days on the other hand, were unreasonable, here Plaintiff alleges that it failed to exercise its option to accelerate for nearly *ten years*. This delay was objectively unreasonable and Plaintiff thereby waived its right to accelerate. Further, because the facts demonstrating this delay are not in dispute, it is appropriate for decision on Demurrer. (*DuBeck v. California Physicians' Service* (2015) 234 Cal.App.4th 1254, 1265, quoting *Gill v. Rich* (2005) 128 Cal.App.4th 1254, 1264.)

Plaintiff argues that its right to accelerate “accrued with respect to each subsequent missed payment.” (Opposition, 12.) This argument is confused. Acceleration doesn’t run as to each payment: it is an action taken as to all future payments. The question addressed in the waiver cases is how long a party may wait after the other party has defaulted to accelerate future obligations. *Holland v. Paddock*, directly on point, held the party had waived its right to accelerate future payments after eleven months. (1956) 142 Cal.App.2d 534, 538. Here, Plaintiff waited approximately an order of magnitude longer.

“Waiver is ordinarily a question for the trier of fact; however, where there are no disputed facts and only one reasonable inference may be drawn, the issue can be determined as a matter of law.” (*DuBeck v. California Physicians' Service* (2015) 234 Cal.App.4th 1254, 1265, quoting *Gill v. Rich* (2005) 128 Cal.App.4th 1254, 1264.)

1 On Demurrer, no facts are in dispute and the allegations in the Complaint are taken
2 as true. Here, the allegations in the Complaint lead only to one reasonable inference: by
3 sitting on its rights for nearly *ten years* before purportedly accelerating the loan, Plaintiff
4 waived its right to accelerate payments due. Plaintiff's cause of action for breach of
5 contract is therefore barred by the statute of limitations.

6 **VI. Plaintiff's Position Would Subvert the Public Policy Purposes of the**
7 **Statute of Limitations.**

8 "Civil statutes of limitations protect defendants from the necessity of defending
9 stale claims and require plaintiffs to pursue their claims diligently." (*Romano v. Rockwell*
10 *Internat., Inc.* (1996) 14 Cal.4th 479, 488.) Statutes of limitations "strike[] a balance of
11 conflicting interests," balancing plaintiff's right to recover on meritorious claims with the
12 unfairness inherent in requiring a defendant "to defend against possibly false allegations
13 concerning long-forgotten events, when important evidence may no longer be available."
14 (*Poosh v. Philip Morris USA, Inc.* (2011) 51 Cal.4th 788, 797.) The judgment for how to
15 strike that balance rests with the Legislature, which "mark[s] the point where . . . the
16 equities tip in favor of the defendant (who may be innocent of wrongdoing) and against the
17 plaintiff (who failed to take prompt action)." (*Id.*) Thus the statute of limitations is
18 "designed to promote justice by preventing surprises through the revival of claims that
19 have been allowed to slumber until evidence has been lost, memories have faded, and
20 witnesses have disappeared." (*Adams v. Paul* (1995) 11 Cal.4th 583, 592.) "Once the
21 statute of limitations runs, 'the right to be free of stale claims . . . comes to prevail over the
22 right to prosecute them.'" (*Nguyen v. Western Digital Corp.* (2014) 229 Cal.App.4th 1522,
23 1538, quoting *Adams v. Paul, supra*, 11 Cal.4th at 592.)

24 Here, according to Plaintiff's allegations, Defendant incurred an unsecured private
25 student loan in 2007. Defendant last made a payment toward that loan in 2012. The loan
26 was charged off, *i.e.* written off as a loss, in 2013. Plaintiff purchased the loan in 2017.
27 Now, Plaintiff brings its cause of action for breach of contract in 2024. The relevant facts

1 for both the claim and any potential defenses will relate to the time before Defendant
2 allegedly defaulted, *i.e.* the year 2012 and earlier.

3 In enacting Code of Civil Procedure § 337, the Legislature determined that a party
4 to a contract must bring an action within four years of breach. That is “the point where . . .
5 the equities tip in favor of the defendant . . . and against the plaintiff . . .” (*Pooshs, supra*,
6 51 Cal.4th at 797.)

7 Here, Plaintiff sat on its rights for far longer than four years. It asks this Court to
8 throw the Legislature’s judgment out the window, and to bless its pursuit of student
9 borrowers decades after default, when borrowers’ ability to defend themselves has
10 necessarily diminished. Although a longer period to sue based on acceleration may make
11 sense in the context of secured lending, where the lender has an ongoing interest in
12 collateral held by the borrower, it makes no sense in this case.

13 The Complaint demonstrates that the Plaintiff drastically failed to take prompt
14 action and to diligently pursue its rights. It should not be permitted to subvert the
15 Legislature’s judgment and subject Defendant to stale claims requiring him to attempt to
16 defend himself long after “evidence has been lost, memories have faded, and witnesses
17 have disappeared.” (*Adams v. Paul, supra*, 11 Cal.4th at 592.)

18 **VII. Plaintiff’s Request for Judicial Notice Should Be Denied.**

19 Plaintiff requests judicial notice of an unpublished trial court order from a different
20 county in a different case. (Plaintiff’s Request for Judicial Notice, Ex. 1.) It is unclear for
21 what purpose the request is made: Plaintiff does not cite the order in its Opposition. In any
22 case, the Request for Judicial Notice should be denied. Judicial notice of an unciteable
23 judicial opinion is not allowed. (*Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th
24 260, 269, fn. 2 (rule barring citation of unpublished opinions prevents judicial notice of
25 those opinions); *see also Santa Ana Hospital Medical Center v. Belshe* (1997) 56
26 Cal.App.4th 819, 831 (trial court decisions are not citeable).)

1 **VIII. Plaintiff Cannot Cure the Defects in its Complaint.**

2 When a general demurrer successfully challenges a complaint, “[t]he burden is on
3 the plaintiff . . . to demonstrate the manner in which the complaint might be amended.”
4 (*Association of Community Organizations for Reform Now v. Department of Industrial*
5 *Relations* (1995) 41 Cal.App.4th 298, 302; quoting *Hendy v. Losse* (1991) 54 Cal.3d 723,
6 742.) Plaintiff has requested leave to amend its Complaint, but has not demonstrated the
7 manner in which the complaint might be amended.

8 The primary defect with Plaintiff’s Complaint is that it alleges, on its face, that the
9 cause of action for breach of contract accrued more than eleven years before the Complaint
10 was filed. This is further demonstrated by Plaintiff’s judicially-noticeable pleading in a
11 prior case on the same account. The Complaint also alleges, on its face, facts sufficient to
12 find a waiver of Plaintiff’s right to accelerate payments due based on unreasonable delay.
13 These defects cannot be cured through amendment—the facts alleged leave no doubt that
14 the claim at issue is time-barred. Plaintiff did not and cannot demonstrate the manner in
15 which its Complaint might be amended.

16 **CONCLUSION**

17 For the reasons stated above, Defendant Dalton C. Gaudin respectfully reiterates
18 his request that this Demurrer to Plaintiff Student Loan Solutions LLC’s Complaint be
19 sustained without leave to amend and that this action be dismissed.

20
21
22 Dated: July 1, 2024

23 

24 Daniel “Sparky” Abraham
25 Jubilee Legal
26 Attorney for Dalton C. Gaudin
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28